RAMBAM'S LAWS OF ETHICS - HILCHOT DEOT

Awkward Silences: A Tribute to Rabbi Sacks & Why Silence Is a Virtue

Hilchot Deot Ch. 2

Sefer: Mishneh Torah, Hilchot Deot (Rambam's Laws of Ethics) **Chapter:** 2, Halachot 4–6 **Shiur:** Part 3 of the seven-part series, given by Dayan Daniel Kada on Zoom and Facebook, Tuesday 10 November 2020 **Dedication:** Le'ilui nishmat Rabbi Lord Jonathan Sacks zt"l, who passed away that week

These notes are based on an automatic transcript of the recording.

Part 1: A Tribute to Rabbi Lord Jonathan Sacks

The Rabbi opened the shiur with about fifteen minutes on the loss of the former Chief Rabbi, three days after his passing. "I still feel numb every time I talk about the fact that Rabbi Sacks is no longer with us." For the past seven or eight years, he said, Rabbi Sacks had felt like his personal Rabbi, even without a close relationship. Only that week did he realise how many other people felt the same way.

Two meetings

- **The first meeting.** The Rabbi was a 13-year-old boy reading the Torah in shul, only a few times after his Bar Mitzvah. As he read, he was touching the parchment with the yad, which one should not do. Rabbi Sacks was called up for an aliyah and gently lifted his hand off the Sefer Torah, twice in the same aliyah. Only afterwards did the shul's Rabbi tell him who that person was. They spoke at the Kiddush, and that was the first time he met him.
- **The last meeting.** This was in September 2019, at the funeral of Mrs Estelle Levy, Rabbi Levy's wife. The Rabbi went over to tell Rabbi Sacks how much his books, and his weekly *Covenant & Conversation*, had transformed his thinking and the way he delivers his own lectures and sermons. Rabbi Sacks told him three or four times in the conversation how happy he was to hear it.

Driving home, the Rabbi reflected that "this world-class philosopher, this world-class theologian, is actually encouraged by little me." He drew two lessons:

1. **Humility.** Rabbi Sacks appreciated every single person who valued his work.
2. **Words of encouragement go far.** "Don't think that the great and the lofty are not human. They also need inspiration and encouragement."

"From failure to failure"

Rabbi Sacks was honest about the difficult times in his life, including depression. The Rabbi retold a story Rabbi Sacks used to tell. A rabbi in America looked over his CV and asked what he had ever failed at. Rabbi Sacks answered, "I have failed at everything." Then he quoted his

favourite definition of success, from Winston Churchill: **going from failure to failure without a loss of enthusiasm.** We only ever see people's successes, the Rabbi said. What made Rabbi Sacks great was that he persevered, and lived with the knowledge that we can lift ourselves up when we fall and that Hashem forgives us.

The Great Partnership: *mah* and *lamah*

The Rabbi first came across *Covenant & Conversation* about eight years earlier. He was stunned by how relevant it made the Torah, and how the sacred and the secular sat together. For him at the time, they had seemed incompatible. He recommended *The Great Partnership* as the book to start with, and quoted its famous line: **science tells you what, religion tells you why.**

	Science	Torah
Hebrew word	what – (*mah*) **מה**	why – (*lamah*) **למה**
What it does	Breaks the world down into its components	Gives the framework, context and meaning
Alone it is...	"always too little" (*ve-nachnu mah*)	the meaning of reality

There is no contradiction between Hashem's works (the physical world) and Hashem's words (the Torah). They come hand in hand. The Rabbi said this "changed my whole hashkafah in life."

The prophetic voice

The Rabbi admitted that whenever a sermon he had written did not feel inspiring or relevant enough, he turned to Rabbi Sacks' archive. Searching a topic gives "ten essays with different ideas" that always gave the dvar Torah an extra boost. He quoted Prince Charles calling Rabbi Sacks "a prophetic voice." This is exactly what the Nevi'im were: people who took the Torah and made it relevant to the society around them. Torah cannot stay in an ivory tower.

The takeaway: seek out the Hachamim while they are here

"Everyone is now listening to his lectures. Why now? Why not when he was alive?" Rabbi Sacks' books were trending on Amazon that week. That is human nature, the Rabbi said: we only appreciate things once they are gone. His lesson was to seek out the great Hachamim and Tsaddikim of this generation, spend time with them and learn from them while they are alive. Don't push it off to another time.

He announced a plan for 2021, after this Rambam series: a series on Rabbi Sacks' books, one book each week. (That series later ran as the conversations with Rabbi Joseph Dweck on *The Great Partnership* and *Not in God's Name*.) The shiur was dedicated le'ilui nishmato.

Part 2: Recap — Getting to the Middle Path

- **Week 1:** the path of the Hacham is to be **equidistant from the extremes**, with every character trait in moderation.
- **Week 2:** there are two cases where one *should* go to an extreme:
- **To correct a trait that has gone off-kilter.** Bend the paper the other way. Someone who overspends should be extremely thrifty for a while. Someone with a sour face should walk around "jolly and merry and dancing" for a while. Then return to the middle.

- **Anger and humility.** Stay as far from anger as possible. If authority must be shown, show it outwardly while staying calm inside. Humility can never be too much. It does not mean being a pushover. It means recognising that everything is from Hashem and we are His conduits.

The Rabbi noted that in preparing this shiur, "I really saw Rabbi Sacks in the Rambam," and would return to him during the class.

Part 3: Silence Is a Virtue (Halacha 4)

לעולם ירבה אדם בשתיקה ולא ידבר אלא או בדבר חכמה או בדברים שהוא צריך להם לחיי גופו A person should always be excessively silent, and speak only words of wisdom or what he needs for his physical life.

- **Rav never spoke idle talk.** It was said of Rav, the student of Rabbeinu HaKadosh (Rabbi Yehudah HaNasi, who compiled the Mishnah in the 3rd century), that he never engaged in idle talk (**שיחה בטלה**) his whole life. The Rambam adds a dose of realism: *this is how most people spend their talk.*
- **"Haki balash."** Seeing Arabic speakers on the call, including his mother, the Rabbi offered the Arabic expression for *sichah beteilah*: empty talk. Someone in the class supplied the English, "shooting the breeze."
- Even about necessary physical matters, **don't speak at length.**

כל המרבה דברים מביא חטא – whoever talks too much brings sin.

לא מצאתי לגוף טוב אלא שתיקה – I found nothing better for the body than silence (Avot 1:17).

Few words, rich content

וכן יהיו דבריו מעטים וענייניהם מרובים... ולעולם ישנה אדם לתלמידיו דרך קצרה His words should be few and their content rich... and one should always teach students in a concise way.

- Teach in principles that people can take home from a shiur.
- The Rabbi quoted Einstein: *everything should be made as simple as possible, but no simpler.* This was another of Rabbi Sacks' gifts. He could take the most philosophical ideas and bring them down, while the deep truths remained.
- **Many words with little content is foolishness.** "The voice of a fool comes with many words" (Kohelet 5:2).

Part 4: Don't Be Quick to Answer (Halacha 5)

סייג לחכמה שתיקה, לפיכך לא ימהר להשיב ולא ירבה לדבר The fence around wisdom is silence; therefore one should not be hasty to answer, nor speak too much.

Two readings of "before he hears"

The Rabbi brought Mishlei 18:13 and asked the class to read the Hebrew, not the English translation:

משיב דבר בטרם ישמע אולת היא לו וכלמה One who answers before he hears, it is folly and shame for him.

The word **ישמע** can mean *to understand* or *to hear*. For example, Yosef's brothers did not know that Yosef was **שומע** (understanding), because there was an interpreter between them. He

obviously heard them; the word there means *understood*.

Reading	Meaning	Lesson
Before he understands (the usual translation)	Don't answer before you have processed the question	Take time to analyse and think it through
Before he hears (Rav Saadia Gaon)	Don't answer before the other person has finished speaking	Don't cut people off. Listen and show respect for what they are saying

Rav Saadia Gaon's reading describes the conversations where you can tell the other person is just waiting to make their own point: "If you let me finish the sentence, you'll understand. There'll be an answer to your question."

He teaches his students calmly and with composure, without shouting and without verbosity... The words of the wise are heard when spoken calmly (Kohelet 9:17). **ומלמד לתלמידיו בנחת ובישוב בלא צעקה ובלא אריכות לשון... דברי חכמים בנחת נשמעים**

Benachat here means both *calmly* and *to the point*.

Part 5: Two Side Points

Does this apply to women?

The Rabbi raised two Gemarot:

- **Kiddushin 49b:** "Ten measures of chatter came down to the world, and women took nine."
- **Berachot 48b:** the young women who gave Shaul long, roundabout directions to Shmuel. One explanation in the Gemara is that "women are chatterers." The Gemara also gives other reasons, for example that they wanted to gaze at Shaul's beauty.

He stressed that these must be read in context and not in a misogynistic way. Two thousand years ago, women were not educated and did not work. Commerce and business were handled by their husbands, so conversation was inevitably *sichah*. "The world has changed today," and he would argue this no longer applies to the same extent.

The Rambam's five categories of speech

In his commentary on the Mishnah (Avot 1:17), the Rambam explains that **one of the signs of the wise is few words; one of the signs of the fool is many words.** He divides all speech into five categories:

#	Category	What it covers	The Rabbi's examples
1	commanded – **מצווה**	Torah, its study, shiurim	–
2	forbidden – **אסור**	False testimony, lashon hara, cursing, embarrassing people	–
3	repugnant (not – **נמאס** forbidden, but no benefit)	"What happened to so-and-so, what are King X's customs, how did Z get rich"	*"Vos iz neias?"*; hours spent on that week's Trump–Biden news and tweets
4	beloved – **נאהב**	Praise of virtue and good people, ethical (*mussar*) works	Speaking well of others, positive talk
5	permitted – **מותר**	Business, commerce, everyday needs	–

The Rabbi laid these out as a spectrum. Mitzvah speech is at one extreme and forbidden speech at the other. The repugnant sits just next to the forbidden, the beloved next to the mitzvah, and the permitted is in the middle.

Part 6: Why Is Silence in This Chapter? "Awkward Silences"

The puzzle is that all of this seems to be a new topic. Why isn't it a new chapter, and how does it continue last week's teaching on the middle path? The Rabbi brought an idea he heard from **Rabbi Joseph Dweck**.

The simple link. The previous halacha ended with the pious who are insulted but do not respond and stay happy. So the next halacha continues: keep quiet when you don't need to speak.

The deeper link. Hilchot Deot is about our *da'at*, and how we interact with the people around us. The main way we interact is speech. Until now the Rambam has taught **how to get to the middle.** Now he teaches **how to stay there.**

Think of learning to ride a bike. At first you wobble right and left, then you find your balance. The hard part is getting there, but once you're there, how do you stay there without being dragged off-kilter by foreign elements? The Rambam's answer is **don't talk.** The default of being is silence.

The Rabbi titled the shiur **"Awkward Silences."**

- **Silence is uncomfortable for most of us.** Radio can't have dead air. If he stopped the lecture for half a minute, people would start asking whether everything was OK. Alone it's even worse: how often do we sit without music, radio, a book or a phone, and just *be*? Radio is "chewing gum for the brain."
- **Real friends can be silent together.** With a spouse or a very close friend, you can walk in the park or sit over lunch in silence with no awkwardness. Small talk exists to fill the time with people we don't fully express ourselves to.
- **Why that matters.** The tsaddik of the previous halacha hears insults, does not respond, and is *still happy inside*. "I know who I am. You don't define me by what you say. I am who I am, with or without you." Someone comfortable with silence is comfortable with their own identity.

- **Speech creates, so it is not the default.** "Death and life are in the hand of the tongue" (Mishlei 18:21). Speech is the power to create, but we are not always in creative mode. Real speech needs silence around it, before and after, to be processed. A deep idea dropped into constant banter will not be heard.
- **Shimon ben Rabban Gamliel (Avot 1:17): כל ימי גדלתי בין החכמים ולא מצאתי לגוף טוב אלא שתיקה** – "All my days I grew up among the Hachamim, and I found nothing better for the body than silence." The whole series is about how to become a Hacham. The Hacham is happy within his own skin and does not need to fill the air.

"How are you?"

"How are you?" means nothing. If someone actually told you how they were, you'd think something was wrong. A more meaningful question, for someone you haven't seen all week, is: *How has your week been? Any highlights?* That is real speech that needs a real answer. It is **דיבור נאהב**, beloved speech, as opposed to filler that only gets us past the awkwardness of silence.

Summary of the idea: The default of being is silence, because we create when we speak. Silence doesn't disturb our existence; it allows our being to *be*. We only struggle with silence when we struggle with ourselves. Be a human *being*, not a human *doing*.

From the class

- **Flora** pointed out that Esther and Binyamin were rewarded for their silence. She also mentioned a Gemara that whoever is silent becomes a master of halacha, because when you listen, you internalise.
- The Rabbi added the Gemara that a sign of good lineage (*meyuchas*) is being a **שתקן**, one who is silent and listens. That too was a trait of Rabbi Sacks: "He was an introvert in essence," and spoke when it was important to.

Part 7: Smooth Talk and Stealing Minds (Halacha 6)

> **אסור לאדם לנהוג בדברי חלקות ופיתוי, ולא יהיה אחד בפה ואחד בלב, אלא תוכו כברו**
> One may not use smooth and seductive speech, nor be one thing in the mouth and another in the heart; rather his inside must be like his outside.

חלק / smooth. Hebrew and English share the image. *Chalak* meat (Yiddish *glatt*) has smooth lungs, and a *glatte sevara* is smooth logic. In English we call it "smooth talk".

- **Yosef's brothers.** They "could not speak to him peaceably." The Hachamim find the silver lining: at least they weren't two-faced. Everyone knew where they stood.

Genevat Da'at: stealing someone's mind

It is forbidden to mislead people, even a non-Jew. This is not outright lying. It means creating a false impression.

The Rambam's case	How the Rabbi explained it
Selling non-kosher meat as if it were shechted	A non-Jew asks for meat. You hand him kosher meat and slip in some *neveilah* you need to get rid of. You haven't said a false word, but you've stolen his mind.
A shoe from a dead animal sold as one from a slaughtered animal	Leather from a slaughtered animal was evidently better quality, perhaps because you knew the animal was healthy.
Pressing a friend to eat with you when you know he won't	You invite him for Shabbat lunch on Monday, knowing he flies to Israel on Thursday. You give the impression you want his company when you don't.
Offering gifts you know won't be accepted	-
Opening barrels "in his honour" that you needed to open anyway	The Rabbi's version: you need to open twenty whiskies for a tasting in two weeks. You open them early in front of your guest, the Blue Label and the Glenfiddich, "all for you, *lichvodcha*," when really you only need to sell them.

Even a **ואפילו מלה אחת של פיתוי ושל גניבת דעת אסור, אלא שפת אמת ורוח נכון ולב טהור מכל עמל והוות** single word of seduction or deception is forbidden. Rather, a truthful lip, a steadfast spirit and a heart pure of all trickery.

Summary

1. **Rabbi Sacks:** humility, honesty about failure ("from failure to failure without a loss of enthusiasm"), Torah and science as *lamah* and *mah*, and the lesson to seek out the Hachamim while they are alive.
2. **Silence is a virtue** and the safeguard of wisdom. Speak only words of wisdom or what is needed, and teach with few words and rich content.
3. **Don't answer before you hear.** Process the question, and don't cut people off (Rav Saadia Gaon).
4. **Five categories of speech:** commanded, forbidden, repugnant, beloved and permitted.
5. **Why silence follows the middle path:** the Rambam first teaches how to reach equilibrium, then how to stay there. Silence is the default state of being. Awkward silences point to a problem in our relationship with ourselves.
6. **No smooth talk and no *genevat da'at*:** your inside must match your outside, even towards a non-Jew, even by one word.

Coming Up

- **Next week:** Chapter 3, on enjoying this world and partaking of it in the right way.
- **Tuesday 1 December 2020:** a conversation with Rabbi Dr Joshua Berman on his book *Ani Maamin*, about the Torah in the context of archaeology and history. Thanks to Kenneth Pratt, who gave the Rabbi the book.

Watch or listen to this shiur: youtu.be/xjQCWhGr9h0 · More shiurim: rabbikada.com